

**IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
OCTOBER TERM, A.D. 2015**

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.CHIEF JUSTICE
BEFORE HIS HONOR: KABINEH M. JA'NEHASSOCIATE JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIEASSOCIATE JUSTICE
BEFORE HIS HONOR: PHILIP A.Z. BANKS IIIASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOH ASSOCIATE JUSTICE

K & H Construction Company, represented	)	
by its authorized representative, Najib	)	
Kamand, also of the city of Monrovia,	)	
Liberia.....	)	Appellant
	)	
Versus	)	Appeal
	)	
The Realty Trust of the late William E.	)	
Dennis, Sr., represented by its Trustee,	)	
Hillary A. Dennis, of Monrovia, Liberia	)	
.....	)	Appellee

GROWING OUT OF THE CASE:

The Realty Trust of the late William E.	)	
Dennis, Sr., represented by its Trustee,	)	
Hillary A. Dennis, of Monrovia,	)	
Liberia	)	Petitioner
	)	
Versus	)	Petition for Declaratory
	)	Judgment
K. & H. Construction Company, represented	)	
By its authorized representative,	)	
Najib Kamand, also of the city of	)	
Monrovia, Liberia.....	)	Respondent

DISSENTING OPINION

HEARD: April 9, 2015

DECIDED: February 5, 2016

I have gone through the majority Opinion with my colleagues on the Bench, hoping to convince them to see my analysis of the issues and to make them see that their application of the law to the facts in this case is wrong, and not been successful in my lone view to persuade the majority to consider my views in the matter, and firmed and convinced that my views represent the right legal interpretation of the facts and issues presented, I have declined to append my signature to the judgment, and hence my dissent in this matter.

The facts, as already mentioned in the majority Opinion, is that the appellee, the Dennis Realty Trust entered two agreements with the appellant, K. & H. Construction Company for separate properties situated and lying in Sinkor,

Monrovia. The stipulated term of the first agreement dated September 8, 1983, was for a certain period of twenty (20) years, and an optional period of ten (10) years. That is, the certain period ran from October 1, 1983, to September 31, 2003, and the optional period from October 1, 2003 to June 30, 2013. The second lease of December 4, 1987, certain period ran from August 1, 1985, to July 31, 2005, with an optional period of twelve (12) years, running from August 1, 2005, to July 2017.

Stipulated annual rents were set in these agreements for the certain period; however, both agreements provided that during the optional period, all income be divided on a 50/50 basis after all expenses; both parties were to agree to the rental terms and sign all contract as well as agree to a the expense; that the appellant K. & H. Construction Company would provide a semi-annual financial statement and operation statements.

As stated in the majority opinion, these agreements were in effect when in 2002, prior to the expiry of the leases, appellee, Dennis Realty Trust, moved on the property in 2002, claiming that the appellant, K. & H. Construction Company had abandoned the properties and had failed to pay its rent. Appellant K. & H Construction Company filed a petition for declaratory judgment in the Sixth Judicial Circuit, Civil Law Court, asking the court to declare the leases still valid and enforceable. The lower court in its ruling on the declaratory judgement declared that the leases were valid and enforceable. The Appellee Dennis Realty Trust appealed the ruling of the lower court, stating that in fact the leases had expired in in 2003, and 2005, respectively, prior to the institution of the action on December 4, 2006.

On this first appeal by the parties on the issue of the illegal possession by the Dennis' Realty Trust, the Supreme Court after a thorough review of the facts and circumstances of the matter, on June 27, 2008, confirmed the lower court's ruling holding that the leases were still valid and enforceable, and that the Realty Trust had illegally moved on the leased properties and taken possession thereof without recourse to the court. The court in its ruling held the following:

1. "The final judgment rendered by the trial court declaring the two agreements of lease of 1983 and 1985, along with their respective optional clauses, valid and enforceable, is hereby affirmed.
2. The time period of The William E. Dennis Sr., Realty Trust Estate's illegal re-entry and repossession of the demised property, commencing April 2002 to the date of rendition of this Opinion, said period being six (6) years, is hereby ordered restored and to be exercised by the K & H Construction Company on each of the two agreements of lease executed between the parties.

3. Also, an additional one (1) year is ordered added to each six (6) year as imposed penalty to offset for interest on the rentals unlawfully collected during the period of The William E. Dennis Sr., Realty Trust Estate's illegal re-entry and repossession of the demised premises." *Id.* March Term, A.D. 2008.

The Clerk was ordered to send a mandate to the judge presiding in the lower court to resume jurisdiction and give effect to the judgment.

Thereafter, a second matter between the parties was brought up to the Supreme Court. This time it was a bill of information filed by the Dennis Realty Trust, seeking clarification from the Court on the handling of the mandate by the Circuit Court. Dennis Realty Trust alleged that Judge Yussif D. Kaba, presiding in the court below, in his enforcement of the Supreme Court's mandate had written tenants on the leased properties requiring that all rental payments be paid to the K. & H. Construction Company when the Dennis' Realty Trust was entitled to all rents before the Supreme Court's Opinion of June 27, 2008, it having paid the penalty for its illegal possession and collection of rents when the Supreme Court extended the leases for seven years.

On July 23, 2010, the Court in its ruling on the bill of information held that the Dennis Realty Trust was entitled to rental proceeds before the Court's ruling of June 27, 2008, since holding otherwise would amount to K. & H. Construction Company being unjustly enriched. However, based on the counter allegation by K. & H. that the Dennis' Realty Trust continued to hold the property despite the ruling of June 27, 2008, and had collected future rents, the Supreme Court mandated the Circuit Court to investigate the Dennis Realty Trust as to their compliance with the Court's mandate, and instructed the court below on the following action to take in settling the matter:

1. "To conduct an investigation in order to determine rentals paid by tenants/lessees of the Estate of the William E. Dennis Realty Trust to the second respondent, K. & H. Construction Company; if the court determines that second respondent [K.&H.Construction Company] collected and received any payments for period precedent to the June 27, 2008 mandate, said amount shall be deducted preferentially from all rentals due and payable to second respondent immediately hereafter.
2. Investigate allegations that the informant [Dennis Realty Trust] did not vacate the premises immediately as of June 27, 2008, in addition to collection of rentals which legitimately were payable to second respondent; if said allegation is verified to be true, appropriate rentals as well as collections made for the period commencing June 27, 2008, shall be paid by informant to second respondent.

3. That the mandate herein directed shall be executed and returns filed thereto thirty (30) days as of the date of receipt of this Judgment." Id. March Term A.D. 2010.

This mandate of July 23, 2010, was sent to the lower court for enforcement, and interestingly no information was filed before the Supreme Court thereafter complaining the Circuit Court's failure or irregular execution of this second mandate, and we see no returns made from the lower court on its execution of this Supreme Court's mandate. What happened thereafter remains a mystery, but it is apparent that the Appellant K. & H. Construction Company took possession of the leased properties and was in control of them when on August 23, 2012, two years after the July 23, 2010 ruling, the Dennis Realty Trust, the appellee now before us, filed a petition for declaratory judgment in the court below petitioning the court to declare its right under the optional period of the leases so as to participate in the subletting of the properties and receive its 50/50 payment as agreed to by the parties in the lease agreements. The Appellee, the Dennis Realty Trust, stated that in keeping with the Supreme Court's Opinion of June 27, 2008, the Appellant K. & H. Construction Company had the following rights under the certain period of the leases:

8. "Petitioner submits and says that in keeping with the Opinion and Judgment of the Supreme Court, vis-à-vis the herein mentioned lease agreements, respondent has the following rights:

Under the September 8, 1983 Lease Agreement:

- a) Respondent had one (1) year five (5) months of the certain period plus the one (1) year added by the Supreme Court as imposition of penalty to offset interest, thereby granting respondent two (2) years five (5) months under the certain period of said agreement of lease.

Under the December 4, 1987, Lease Agreement:

- b) Respondent had three (3) years three (3) months of the certain period plus the one (1) year added by the Supreme Court as imposition of the penalty to offset interest, thereby aggregating four (4) years three (3) months remaining in favor of the respondent under the said agreement. "
9. That also as to count eight (8) above, petitioner submits and says that considering that the Opinion and Judgment of the Supreme Court were rendered on June 27, 2008, respondent's certain periods under the lease agreements of September 8, 1983, and December 4, 1987, were extended up to and including November 30, 2010 and September 30, 2012 respectively.
 10. That in keeping with Article IV of the lease agreements of September 8, 1983, and December 14, 1987, and taking into consideration the judgment of the Supreme Court of the Republic of Liberia, petitioner and respondent are entitled to (a) share the income from the rental terms and sign all contracts together as

well as agree on all expenses effective December 1, 2010, and October 1, 2012, respectively.”

The petitioner then prayed the trial court as follow:

- i) “That the petitioner has the right, and is entitled to agree on the rental terms, sign all the contracts, agree on all expenses, and share the rental income from the premises, subject of the September 8, 1983, lease agreement of a 50-50 basis with respondent effective December 1, 2010, up to and including September 30, 2020.
- ii) That petitioner has the right, and is entitled to agree on the rental terms, sign all contracts, agree on all expenses, and share the rental income from the premises, subject of the December 4, 1987, lease agreement on a 50-50 basis with respondent effective October 1, 2012, up to and including November 30, 2024.

To this petition for declaratory judgment, the Appellant K. & H. Construction Company filed its returns basically stating that the mandate of July 23, 2010, of the Supreme Court had not been fully enforced and as long as judgment of the Supreme Court remains not fully enforced and legally satisfied, the Supreme Court retains jurisdiction over said matter; that no subordinate court has the authority to interpret, construe or determine any question of validity arising out of a non-fully enforced Supreme Court Opinion. Respondent contended that for the trial court to entertain the declaratory judgment, the proceeding would be equivalent to exercising concurrent jurisdiction with the Honourable Supreme court of Liberia; that any party dissatisfied with, or who believes that the enforcement of a decision of the Supreme Court in a given matter is being impeded or obstructed, he/she may bring information before the Full Bench. Therefore, if the petitioners believes that the implementation of the Supreme Court mandate with respect to its decision handed down June 27, 2008, is being improperly enforced or implemented, then the proper course to take would be to institute information proceeding before the Full Bench; not a declaratory judgment action before a subordinate court. The appellant proceeded on this basis to file a motion to dismiss the petition for declaratory judgment. Judge Kaba, who was again presiding over the Sixth Judicial Circuit, dismissed the motion.

My first disagreement with the majority opinion is their interpretation of Judge Kaba’s decision to entertain Appellee Dennis’ Realty Trust’s August 23, 2012 petition for declaratory judgement, and the extent at which they have considered it a serious affront by the appellee’s counsel and Judge Kaba to the Supreme Court.

The majority in their opinion have viewed the averments in the declaratory judgment as a further need to clarify the Supreme Court’s mandate and in which

case only the Supreme Court can interpret its mandate and the Judge should have declined to proceed into the hearing of the petition.

I disagree with the majority that the Judge should not have proceeded to hear the petition for declaratory judgment.

The Judge rightly stated that the mandate of June 27, 2008 and July 23, 2010 involved the issue of possession and the settlement of disputed rents; the issue in the petition for declaratory judgment was separate and distinct from matters of possession and rents due that were previously handled by the Supreme Court and that there was no issue of interpretation of the Supreme Court's mandate in the declaratory judgment filed before the lower court where the appellee [Dennis Realty Trust] sought affirmation on when to start the enforcement of the optional period now that the Supreme Court's mandate putting the appellant in possession of the premises had been enforced by the lower court.

I differ with the majority that the issue raised in the petition for declaratory judgment sought to interpret the Supreme Court's mandate and that it was an error for the Judge to usurp the authority of the Supreme Court by imputing upon himself the authority to interpret and review the Supreme Court's mandate. If anything, I see the Judge's ruling in furtherance of the proper enforcement of the Supreme Court's mandate which the Supreme Court had authorized the lower court to carry out. Where his interpretation was unacceptable to the appellant, it, as has been rightly done by the appellee before, had a choice of appealing the ruling of the Judge or filing a bill of information before the Supreme Court alleging a wrongful interpretation of the Court's mandate of June 27, 2008. If the Judge was not allowed to go into the petition, by what means was the appellee [Dennis Realty Trust] to come to the Supreme Court since the lower court had already resumed jurisdiction as mandated by the Supreme Court, and the lower Supreme Court could only assume jurisdiction again based on a writ issued out of a bill of information, or an appeal from the petition for declaratory judgment as in this case. Filing a bill of information had to be that the Judge had gone into a matter and had interpreted the Supreme Court's mandate wrongly. So in whatever case, the Judge had to first act before either party move up to the Supreme Court. In fact, the majority in their opinion said the lower court had not completely enforced the Supreme Court's mandate, so that meant the lower court still had jurisdiction of the matter. By what legal reason then could the appellee have gone directly to the Supreme Court for an interpretation of its petition? Was the issue an issue addressed by the Supreme Court in its two previous mandates that needed an interpretation?

Nowhere in either of the cases brought before us did this Court speak on the issue of the payment terms of the agreements reached by the parties or as to when the optional period would commence. The Supreme Court's extension of the leases did not change the other agreed terms of the agreements which provided for certain and optional periods and rents to be expected therefrom. The appellee by filing a petition for declaratory judgment was in no way seeking an interpretation of the Supreme Court mandate, as the issue of when the optional period starts in the leases in face of the extension of the leases by the Supreme Court was never addressed in the Court's Opinions. The court only extended the lease by seven years, said mandate extending the leases by six years and giving another year as penalty for collection of rents. In its enforcement of the mandate the lower court had to look at the matter in its totality and give a proper interpretation to the mandate. The petition for declaratory judgment filed by the Appellee Dennis Realty Trust sought an approbation of the lower court in enforcing the optional period of the leases now that the lower court had resumed jurisdiction of the case and had enforced the Supreme Court's mandate by putting the appellant in possession of the leased premises.

In giving effect to the Supreme Court's judgment, if the majority is propounding that where a mandate of the Supreme Court has been sent to the lower Court for enforcement of a judgment, that all and any ancillary issues growing thereafter between the parties be brought to the Supreme Court for interpretation, and that the court continues to retain jurisdiction of matter even where it had ordered the lower court to resume jurisdiction of the matter, we would then wonder at what stage does the Supreme Court lose jurisdiction of a case after it has ruled on said matter and has sent a mandate to the court to resume jurisdiction and enforce its judgment? My understanding of the law is that the Court does not retain jurisdiction where a mandate has been sent down to the lower court to resume jurisdiction and enforce a mandate. otherwise both the Supreme Court and the lower court would be exercising concurrent jurisdiction over a case (*Kamara et al v. Kindii et al.* 39 LLR, 102, 115 (1998)).

What the law provides is when the party feels that the enforcement of the lower court is contrary to the Supreme Court's mandate, it should proceed to file a bill of information before this Court, which allegations therein, if the Court feels merited, would then issue a writ, hear the matter and ruled on whether the lower court's interpretation of the Supreme Court's mandate was wrongful. The majority ruling holding that the Supreme Court continues to retain jurisdiction of all ancillary matters arising subsequently to a matter handled by it, in my opinion, would

relegate the Court to a place where it would not be seen and held as a Court of last resort.

The only issue for enforcement of both of the mandates sent to the lower court in this matter was the putting of the appellant in possession of the property and working with the parties on the issue rents claimed. With no dispute as to the appellant having been put in possession, I can only assume that any unenforced mandate or interpretation of the Court's mandate if not executed would be the issue of settlement of outstanding rents to either party and in which case the Judge had to act on it first, and any disagreement therefrom would then be brought to the court for its proper interpretation. I do not even see how this outstanding issue of the settlement of rent relates to the matter for which the appellee sought a declaratory judgment.

Secondly, the majority in its opinion states that it is overwhelming confirmed by the records that the appellee and its lawyer hindered and impeded the appellants right to peacefully possess and enjoyed the demised property, even to the extent of obstructing and disobeying the Judgment and Mandate of this Honorable Court. Contrary to the majority, what I have found in the records is the allegation by the appellant that it was not put in possession of the property until 2009, contrary to the Supreme Courts Mandate of June 27, 2008, and which allegation prompted the Court to institute an investigation by the lower court to ascertain whether the appellee had failed to vacate the premises immediately as of the June 27, 2008 Judgment. There is no returns filed by the court as mandated by the Supreme Court on July 23, 2010, which would have given evidence of the time the appellant was repossessed. What we see is that there is no dispute that when the petition for declaratory was filed in August 2012, that the appellant was in possession of the property as per the mandate of the Supreme Court which extended the lease for an additional seven years. This aspect of the Supreme Court's mandate placing the appellant in possession having been implemented and no returns from the lower court or papers filed, or by any of the parties as to the wrongful execution of this aspect of the Court's mandate, we can safely hold that the mandate was executed as required. Also, there is no evidence before this Court of the disputed rents not having been settled; in which case then, there can be no matter before this Court that could be considered as wrongful interpretation by the lower court of the Supreme Court's mandate, or wilful disobedience to the Court's mandate by the Appellee Dennis Realty Trust.

I do not believe that the appellee violated the law when it sought confirmation from the lower court declaring the proper time for enforcement of the optional period in the lease agreements, or that the appellee's counsel or Judge

deliberately set out to disrespect the Court. I believe that the petition was rightly filed before the lower court and that Judge Kaba properly went into the hearing of the petition. It was the right of the appellant to further appeal from the Judge's ruling, as in this case, and the Supreme Court, as now, could review the judge's interpretation and say when the optional period in the leases begins.

My qualm with Judge Kaba, however, is having gone into the matter, he should have stated emphatically when the appellant took actual possession of the premises as was mandated by the Supreme Court in its July 23, 2010 mandate. If it was confirmed by the lower court that the appellant did not take possession in June 2008, but in 2009, that would then have influenced the calculation of the remaining certain period and the coming into effect of the optional period based on the Supreme Court's extension of the leases. This would then mean that the appellee, because of its disobedience to the Supreme Court's mandate forfeits another year into the option period as the one and a half (1½) and three (3) years of the certain period, plus the one (1) year penalty imposed by the Court would then take effect only as of when the appellee turned over the premises. Where it was shown that the appellee actually did turn over the premises to the appellant in 2009, there and then the certain period would have run up to November 1, 2011, of the 1983 lease; and July 31, 2013, of the 1987 lease.

I see no justifiable reason for the majority extension of the certain period of the leases so that the optional period takes effect as of the date of rendition of this Court's Judgment, February 5, 2016, when there is no return from the lower court on its investigation stating whether in fact the appellee did violate the Supreme Court's mandate and to what extent.

The extension of the certain periods of the leases beyond November 2010 and September 2012, taking into account the Supreme Court's mandate of June 27, 2008, should have been based on evidence presented and passed on by the lower court. Where the majority itself says that no return was ever made, even if it went on to accept the appellant's allegation that it was put in possession of the premises in 2009, then the optional period should have become effective December 1, 2011 and October 1, 2013. With no return from the lower court as mandated, I can only say that an extension of the certain period by the majority allowing the optional period to take effect as of the date of the delivery of the opinion on February 5, 2016 is unilateral, untenable and has no support in law.

For these reasons presented, I am totally averse to the ruling of the majority and have refused to append my signature to the Judgment in this Case.